

24STCV26653 24STCV26653

County: los-angeles

Division: Civil Law and Motion

Department: 311

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SUPERIOR

COURT OF CALIFORNIA, COUNTY OF LOS ANGELES

Civil

Division

Central

District, Stanley Mosk Courthouse, Department 311

Tentative

Ruling

24STCV26653

PATRICIA

BARTLEY vs LAWRENCE A. BROCKMAN, D.M.D., et al.

August

25, 2026

8:30

AM

NATURE OF PROCEEDINGS:

PLAINTIFF'S MOTION TO QUASH THIRD-PARTY DEPOSITION

SUBPOENAS; REQUEST FOR MONETARY SANCTIONS.

RULING:

The

Court orders the Motion off calendar as moot and denies both sanctions requests.

Defendant

Arthur B. Schlachtman, DDS to give notice

I.

BACKGROUND

On October 11, 2024,

PATRICIA BARTLEY (Plaintiff), a self-represented litigant, filed a Complaint against LAWRENCE A. BROCKMAN, D.M.D.; ARTHUR B. SCHLACHTMAN DDS; and JOSEPH P. SABET, DDS, et al. (Defendants).

On July 29, 2026,

Plaintiff filed the Third Amended Complaint (TAC), containing the following Causes of Action:

1)

PROFESSIONAL NEGLIGENCE;

2)

PROFESSIONAL NEGLIGENCE;

3)

PROFESSIONAL NEGLIGENCE;

4)

LACK OF INFORMED CONSENT;

5)

NEGLIGENT INFLICTION OF EMOTIONAL DISTRESS;

6)

NEGLIGENT MISREPRESENTATION;

7)

MEDICAL BATTERY; and

8)

NEGLIGENCE (BREACH OF CONFIDENTIALITY).

Plaintiff alleges that

Defendants' collective negligence, involving failed dental procedures and inappropriate medications, caused Plaintiff's bone infections and loss, multiple tooth extractions, pain, and the need for extensive corrective procedures including bone grafting, tooth extractions, crowns and implants.

On January 28, 2026, the Court's Minute Order relieved Plaintiff's counsel as attorney of record.

On July 29, 2026, Plaintiff moved to quash many subpoenas of Defendant Arthur B. Schlachtman, D.D.S., to medical providers, involving private medical information. Plaintiff also requests unspecified sanctions.

ARTHUR SCHLACHTMAN, D.D.S. (Defendant) emphasizes that the Motion has been moot after subpoena withdrawals, and requests \$1,800.00 in sanctions for having to oppose this Motion.

II.

LEGAL STANDARD

A court may quash a subpoena entirely or partially, and issue an order to protect parties, witnesses or consumers from unreasonable or oppressive demands including violations of privacy. (Code Civ. Proc., § 1987.1.) "[U]pon motion reasonably made by the party,' judges may rule upon motions for quashing, modifying or compelling compliance with, subpoenas." (Lee v. Swansboro Country Property Owners Ass'n (2007) 151 Cal.App.4th 575, 582-583.)

III.

ANALYSIS

Plaintiff's Reply

explains that the Motion was filed before Defendant confirmed withdrawing all subpoenas, and requests unspecified sanctions.

Defendant's Opposition

reports that the Motion is moot after withdrawal of all subject subpoenas and advocates monetary sanctions against Plaintiff.

"Mootness is sometimes

defined in terms of the court's loss of ability to grant effective relief." (Breux v. Agricultural Labor Relations Bd. (1990) 217 Cal.App.3d 730, 743.)

Monetary

discovery sanctions are mandatory as to parties losing discovery motions, unless courts find substantial justification or other injustice. (Deck v. Devs. Inv. Co. (2023) 89 Cal.App.5th 808, 830.) "[T]he phrase "substantial justification" has been understood to mean that a justification is clearly reasonable because it is well grounded in both law and fact.'" (Kwan Software Engineering, Inc. v. Hennings (2020) 58 Cal.App.5th 57, 75.)

Here, Plaintiff, as a

self-represented litigant, cannot obtain sanctions like attorneys' fees. (Kravitz v. Superior Court (2001) 91 Cal.App.4th 1015, 1020; Argaman v. Ratan (1999) 73 Cal.App.4th 1173, 1175; Musaelian v. Adams (2009) 45 Cal.4th 512, 515.)

Further, both Plaintiff's

and Defendant's declarations establish that the Motion properly was filed before final, unequivocal confirmation of withdrawing all subpoenas. However, it is unclear why Plaintiff did not take the Motion off calendar before the hearing date.

Finally, while the

represented Defendant theoretically could recover sanctions, the Court finds that Plaintiff had substantial justification for filing the Motion before Defendant's sufficient confirmation of the subpoena withdrawals.

IV.

CONCLUSION

The Court orders the Motion

off calendar and denies all sanctions.